Colegio International de Caracas

STUDY GUIDE

SAMUN 2026

US SENATE

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1. Introductions

Welcome delegates to the United States Senate at SAMUN 2026! My name is Santiago Cabrera, and along with your Co-Chair, Adriana Sanchez, we are thrilled to moderate through this session. As members of the Senate, you are expected to embody responsibility, respect, and a genuine willingness to engage with diverse political ideologies and fresh ideas. Effective legislative progress

relies on thoughtful debate, open-minded negotiation, and finding common ground on critical national issues. We encourage you to research your state's priorities thoroughly and come prepared for dynamic debate. If you have any questions prior to the conference, please reach out to us at adrianasapc@gmail.com .

2. Matrix

2.1 Committee Introduction & Attributions of the Committee

This committee deals with simulating the United States Senateas well as the upper chamber of Congress, in a Specialized/Hybrid format, and it's a realisticlegislative simulation rather than a Crisis committee. There are no implied crisis notes, portfoliopowers, or backroom; delegates work entirely through public floor debate toward passed resolutions,justas the real Senate does.

The Chair presides as Vice President of the Senate and votesonly to break a tie, the Co-Chair presides as President pro tempore only when the Chair is absent, otherwise voting as a regular delegate. Resolutions pass on a floor vote alone, with a cloture threshold (currently being finalized) required to close debate before any final vote is taken. The conference runs across two days and eight working sessions in total.

The committee's twenty delegate slots are filled by real, sitting U.S. Senators, drawn primarily from the Senate Judiciary Committee and Senate leadership, giving delegates genuine public records, speeches, and voting histories to research rather than inventions.

2.2 Topic A Introduction

The size of the UnitedStates Supreme Court is not fixed by the Constitution, it is set by ordinary legislation passedbyCongress, and it has changed seven times across American history. Since 1869, the number hasstoodatnine Justices, a norm now over a century and a half old (Wikipedia contributors). Thisissueasks a deceptively simple question with enormous consequences: should Congress amend theJudiciary Act of 1869 to change that number, and if so, under what conditions is doing so a legitimateactofgovernance rather than a partisan power grab?

This debate sits at theintersection of two competing values central to American democracy: judicial independence, the ideathat courts must be insulated from political pressure to rule fairly, and democratic accountability,the idea that no unelected body should be permanently shielded from the political process that produced it. Delegates will need to grapple with both as they negotiate the Senate's response.

Unlike many international committees, this is not a question of resolving conflict between nations; it is a question of institutional self-restraint. The Senate holds the legal power to change the Court's size at any time; the entire debate is whether it should.

2.2 Topic B Introduction

Although the Constitution does not explicitly dictate the manner in which electoral districts should be drawn, the task is mainly left to state legislatures, resulting in a complicated scheme of redistricting across the United States. The concept of gerrymandering refers to the deliberate shaping of the boundaries of electoral districts in order to benefit one political party over another. The practice developed after the foundation of the country, but today, developed technologies openly allow numerous political actors to reach their goals of winning elections through scientifically-based gerrymandering. Candidates and parties that engage in the practice of gerrymandering should consider one essential question, namely whether Congress may impose a nationwide ban of gerrymandering and how it can enforce this requirement without going against the principles of federalism.

The challenge is of utmost importance as it considers two highly esteemed principles of American democracy, namely electoral justice, the idea implying that voters are to choose their representatives rather than politicians selecting their voters and state sovereignty, which claims that each state has its own power in the electoral process.

However, unlike usual legislative controversies, the argument here cannot be only about the making of national policy; it is more important than that, as it raises fundamental questions about democratic representation itself. The Senate has constitutional powers in accordance with Article I, Section 4 to change state laws dealing with congressional elections and the question now is whether the Senate should utilize these powers in order to introduce national standards.

Despite the Supreme Court determining in Rucho v. Common Cause (2019) that federal courts do not have jurisdiction over partisan gerrymandering disputes, the Court at the same time created all possibilities for congressional action. Supporters of a national ban consider it necessary to intervene at the federal level in order to avoid drawing maps with excessive party bias, safeguard minority representation and restore people’s trust in democracy. On the contrary, critics argue that the establishment of federal norms will infringe state constitutions and take away local governments’ right to self-determination.

Plenary sessions will be held by delegates to analyze possible measures regarding redistricting reform, such as requiring independent redistricting commissions, using uniform statistical methods to assess fairness in redistricting maps and reinforcing the Voting Rights Law. The study will investigate whether federal regulation of districting practices is an important safeguard against any possible violation of the right to vote or whether that would be regarded as dishonest interference in state matters.

3. Definition of Key Terms

Judicial Independence: Courts deciding cases free from political influence or pressure.

Court Packing: Expanding a court's size to change its ideological balance.

Advice andConsent: The Senate's power to approve or reject presidential appointments.

Judiciary Act: Federal laws that structured and organized the U.S. court system.

Stare Decisis: The legal principle of following established judicial precedents.

Cloture: A Senate vote used to end a filibuster and limit debate.

Fireside Chat: FDR's informal radio broadcasts to the American public.

Partisan Gerrymandering: Redrawing voting district lines to give one political party an unfair advantage.

Elections Clause: The rule in the Constitution that gives states control over running elections, but lets Congress step in if needed.

Federalism: A system where power is shared between the national government and state governments.

State Sovereignty: The power of individual states to govern themselves without federal interference.

Rucho v. Common Cause (2019): A Supreme Court ruling that federal courts cannot stop partisan gerrymandering, leaving the issue to politicians and state courts.

Independent Redistricting Commissions: Neutral, non-political groups chosen to draw fair voting maps instead of state politicians.

Voting Rights Act: A federal law that protects voters from discrimination and stops maps from weakening minority voting power.

Non-Justiciable Political Question: An issue that courts refuse to judge because it belongs in the hands of elected officials or lacks a clear legal standard.

4. Glossary

A short alphabetical reference for terms that appear throughout this guide but are not part of the core key-terms list above.

Bicamera: A legislature consisting of two distinct chambers or houses, such as the Senate and the House of Representatives

Chief Justice: The head of the Supreme Court who presides over its proceedings and leads the federal judiciary.

Confirmation Hearing: A Senate committee meeting held to question and evaluate a presidential nominee before voting on their appointment.

Filibuster: A procedure in the Senate used to delay or block a vote on a bill through extended debate.

Judicial Review: The power of courts to review laws and executive actions and declare them unconstitutional.

New Deal: A series of domestic programs, public work projects, and financial reforms enacted by President Franklin D. Roosevelt during the 1930s.

Nomination: The formal proposal of a candidate by the President to fill a public office or judicial vacancy.

Precedent: A previous judicial decision that serves as an authoritative rule or guide for similar future cases.

Senate Majority Leader: The political leader elected by the majority party in the Senate to manage legislative business and set the floor schedule.

Supermajority: A voting threshold that requires more than a simple majority to pass a measure, such as a two-thirds or three-fifths vote.

5. Delegate Roster

The table below liststhe committee's twenty delegate slots.

#	Senator	Political Party	State
1	**Senator "Chuck Grassley"**	"Republican"	Iowa
2	**Senator "Tammy Baldwin"**	"Democrat"	Wisconsin
3	**Senator "Todd Young"**	"Republican"	Indiana
4	**Senator "Josh Hawley"**	"Republican"	Missouri
5	**Senator "Mike Lee"**	"Republican"	Utah
6	**Senator "John Kennedy"**	"Republican"	Louisiana
7	**Senator "Marsha Blackburn"**	"Republican"	Tennessee
8	**Senator "Chris Van Hollen"**	“Democrat”	Maryland
9	**Senator "Sheldon Whitehouse"**	"Democrat"	Rhode Island
10	**Senator "Richard Blumenthal"**	"Democrat"	Connecticut
11	**Senator "Amy Klobuchar"**	"Democrat"	Minnesota
12	**Senator "Elizabeth Warren"**	"Democrat"	Massachusetts
13	**Senator "Mazie Hirono"**	"Democrat"	Hawaii
14	**Senator "Adam Schiff"**	"Democrat"	California
15	**Senator "Rick Scott"**	"Republican"	Florida
16	**Senator "John Thune"**	"Republican"	South Dakota
17	**Senator "Troy Jackson"**	"Democrat"	Maine
18	**Senator "James Talarico"**	"Democrat"	Texas
19	**Senator "Sherrod Brown"**	"Democrat"	Ohio
20	**Senator "Abdul El-Sayed"**	"Democrat"	Michigan

6. Topics

6.1 History of the Topic A

Before 1869, the number ofSupreme Court Justices changed repeatedly, almost always for political reasons. Congress set the Court at six Justices in 1789, expanded and contracted it several times over the following decades, and in 1866 deliberately shrank it from ten to seven seats simply by declining

to fill vacancies as they opened, a maneuver specifically designed to prevent President Andrew Johnson, who Congress distrusted, from making any appointments. In 1869, the Judiciary Act set the number back to nine, and it has not changed since. This is the exact law your Senate is now being asked to amend.

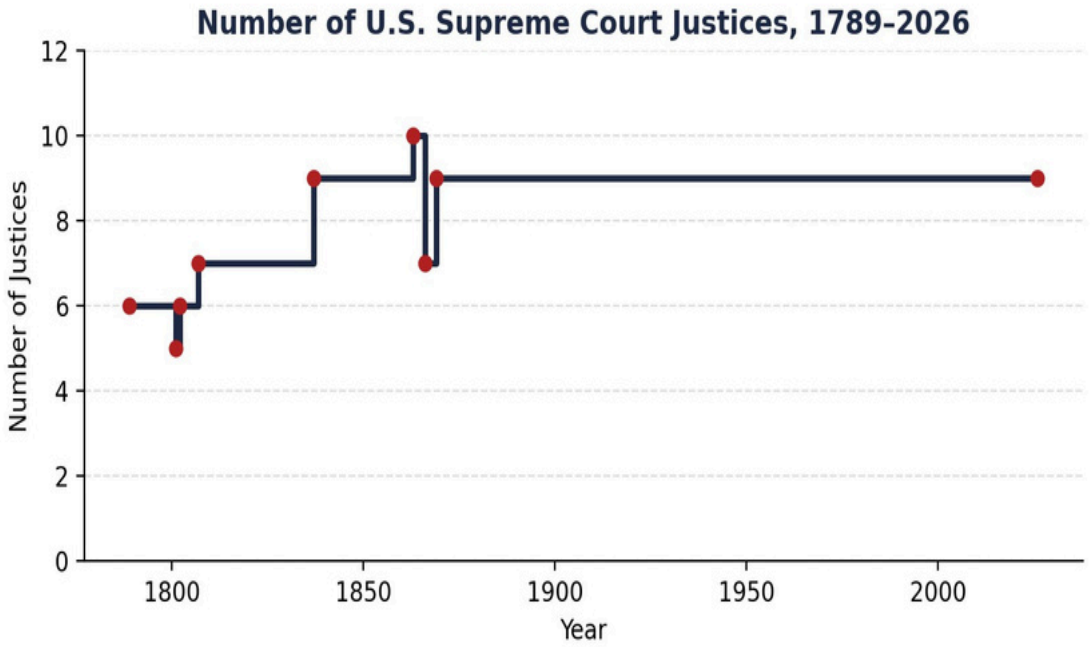


Figure 1: Number of U.S. Supreme Court Justices, 1789–2026. Source: Wikipedia contributors, "Judicial Procedures Reform Bill of 1937."

Date	Event
1789	The first Judiciary Act sets the Supreme Court at six Justices.
1801–1863	Congress repeatedly changes the Court's size for political and administrative reasons, ranging from five to ten seats.
1866	The Judicial Circuits Act shrinks the Court from ten to seven seats by attrition, specifically to deny President Andrew Johnson any appointments.
1869	The Judiciary Act of 1869 sets the Court at nine Justices, the number that remains today.
Feb. 5, 1937	President Franklin D. Roosevelt sends Congress the Judicial Procedures Reform Bill, proposing to add up to six new Justices (Today in Clark History).
Mar. 9, 1937	Roosevelt defends the plan directly to the public in a "fireside chat" radio address (History.com).

Date	Event
Jun. 14, 1937	The Senate Judiciary Committee issues a scathing report condemning the plan as "a needless, futile, and utterly dangerous abandonment of constitutional principle" (Judiciary.senate.gov).
Jul. 22, 1937	The Senate rejects the bill 70–20, a bipartisan defeat, including opposition from Roosevelt's own Vice President, John Nance Garner (Fox News).
2021	President Biden creates a Presidential Commission on the Supreme Court to study reform options, including expansion; it does not recommend a specific course of action.
2026	The size of the Court remains nine. The debate over expansion continues as a live, unresolved policy question.

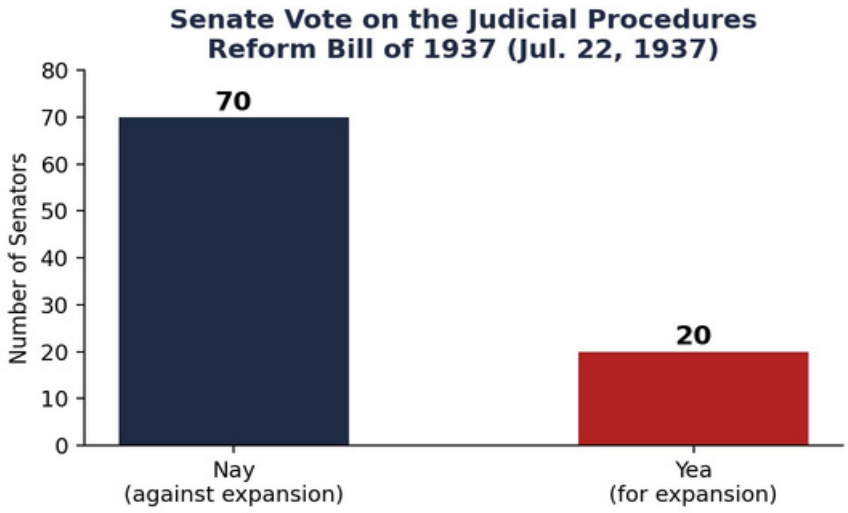


Figure 2: Senate vote on the Judicial Procedures Reform Bill of 1937. Source: Byrne, Kerry J., Fox News.

6.2 Discussion of the Topic A

Arguments For Expansion

Proponents of amending the Judiciary Act generally make three related arguments. First, that the Court's legitimacy has already suffered from increasingly political confirmation battles, and that expansion is a corrective response to a Court that no longer reflects broad public consensus rather than a new escalation of hostilities. Second, that the number nine itself has no special constitutional or moral status, it is simply the most recent number Congress happened to choose in 1869, no more

sacred than the six, seven, or ten Justices the Court has had at other points in history. Third, that treating the Court's composition as permanently untouchable effectively freezes the judiciary's ideological balance for a generation or more each time a presidency and Senate align on appointments, which some argueis itself a form of undemocratic entrenchment.

Arguments Against Expansion

Opponents raise two central objections. The first is the escalation problem: if one party expands the Court while it holds power, nothing stops the next party from doing the same the next time it controls government, which could produce a spiral where the Court's size grows every time political control flips, eventually undermining the very idea of a stable, independent judiciary. The second is the 1937 precedent itself. Even a Senate supermajority of 76 Democrats to 16 Republicans was not enough to pass Roosevelt's plan once it was perceived as a raw power grab rather than a genuine reform (Fox News), a powerful historical signal that public trust, not vote count alone, determines whether expansion is politically survivable.

6.1 History of the Topic B

The process of partisangerrymandering dates back to the founding fathers. The word gerrymandering itself wasborn in 1812 after Massachusetts governor Elbridge Gerry drew a new legislative district with sucha strange shape that it reminded people of a salamander. A century later, many state legislatures refused to redraw districts entirely, resulting in large discrepancies in the number of people per district and giving an unfair advantage to rural districts over urban ones.

The unfairness of such a system was partially addressed in the 1960s through several court orders, including Baker v. Carr in 1962 and Reynolds v. Sims in 1964, which established the rules for redistricting, including the famous "one person, one vote" principle. At the same time, the Voting Rights Act of 1965 was passed, which prohibited discrimination against voters based on race, and a rule banning discriminatory partisan gerrymandering was introduced.

In the last 30 years, the problem of partisan gerrymandering has grown significantly due to the use of new technologies. The current practices of partisan gerrymandering include “packing” and “cracking” that is, concentrating voters of the opposite party in specific districts and dividing the same voters among many districts to reduce their influence.

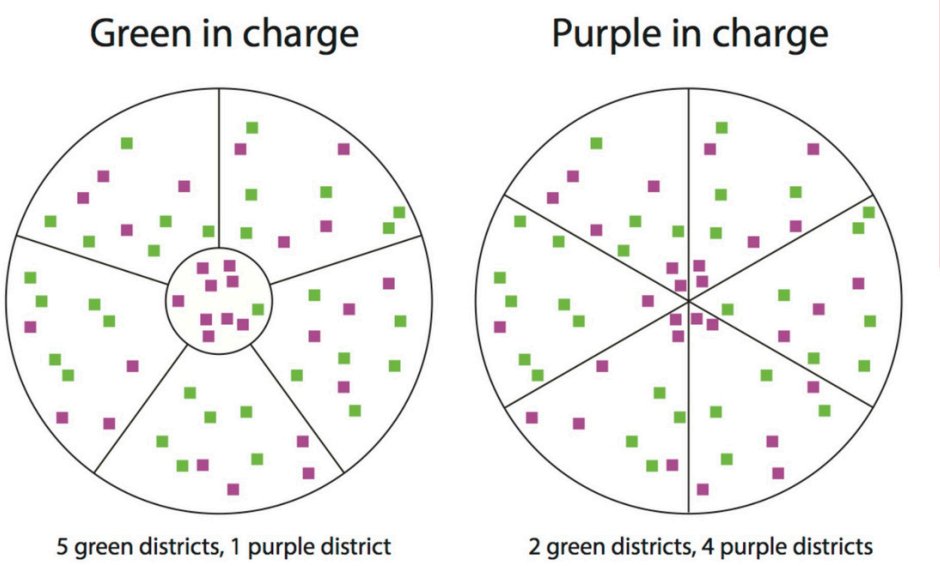


Figure 2: illustrates how these mapping strategies allow a ruling party to engineer a legislative majority regardless of the underlying population split.

Although the Court has consistently ruled against racially discriminatory district plans, it did not adopt a clear stance on partisan gerrymandering for many years. The issue was finally resolved in the Rucho v. Common Cause case in 2019, when the Supreme Court ruled that partisan gerrymandering was a non-justiciable political question. In other words, the federal court could not intervene in the matter, which left it to Congress and the state legislatures to solve the problem of partisan gerrymandering.

6.2 DiscussionoftheTopicB

The main issueofthecontroversy over the federal ban of gerrymandering is the balance between federal oversightandstateautonomy. The proponents of the idea appeal to Article I, Section 4 of the US Constitution,betterknownas the Elections Clause, which allows Congress to legislate to regulate federalelections.However, supporters of state autonomy argue that the process has always been under thejurisdictionofthe states as the Tenth Amendment secures the powers not explicitly granted to thefederalgovernment, making such intervention unconstitutional and unnecessary.

The second issueisthemethodof ensuring a ban on partisan gerrymandering. Some articles suggest that the practicecouldbeeliminated by requiring states to create Independent Redistricting Commissions, whichwoulddraw the districts free from partisan interference. However, such a solution is seen bymanyasremoving the accountability of legislators for the map drawing process. Some suggest thatmathematical and statistical criteria should be applied to determine the

proportionality of the map, but the opponents argue that such a solution would ignore voter clustering and natural geography such as large cities with a substantial concentration of supporters of one party.

The delegates should address the question of partisan gerrymandering and the ban on it in accordance with the Voting Rights Act of 1965. To secure the representation of minority voters, it is necessary to create districts with majority-minority representation as required by Section 2 of the Voting Rights Act. However, if minority voters are concentrated in proportion to their representation in the population, this will create districts where one party's supporters comprise the majority of the population, making them safe seats for that party. As a result, the remaining districts will have a greater proportion of voters for the other party, which necessitates partisan gerrymandering to balance the representation, which the delegates should take into account when developing a solution.

Finally, the delegates need to understand that introducing the ban on partisan gerrymandering at the federal level requires a political battle in the senate, where the rules allow a filibuster to block any legislative action. Gerrymandering is used to gain representation for one party and therefore violates the principles of the separation of powers and checks and balances. A ban on it will damage the powers of one of the chambers of Congress, which will certainly oppose the bill, and the delegates will have to find a way to get the necessary 60 votes to proceed to the vote.

7. Bloc Positions

The Republican Bloc

- Core Interests:Preserve the current nine-seat structure; protect the Court from being seen as a partisan instrument.
- Justification: 151 years of settled practice since 1869; the 1937 precedent shows expansion attempts backfire even for the party proposing them.
- Policies Pursued: Resolutions affirming the current structure, or requiring a supermajority for any future change to Court size.
- RepresentativeSenators: Grassley (IA), Lee (UT), Blackburn (TN). Expect these delegates to invoke the 1937defeat directly.

The Democratic Bloc

- Core Interests:Split between institutional caution and structural reform, this bloc is not unified.

- Justification (institutionalist wing): Wary of setting a precedent that could be used against future Democratic-appointed majorities; prefers term limits or ethics reform instead.
- Justification (reform wing): Views the Court as already ideologically compromised and expansion as a direct corrective rather than an escalation.
- Policies Pursued: Institutionalist wing favors non-structural reform; reform wing favors direct expansion proposals.
- Representative Senators: Baldwin (WI) and Klobuchar (MN) lead the institutionalist wing; Whitehouse (RI), Warren (MA), Hirono (HI), and Schiff (CA) lead the reform wing.

8. Relevant Laws, Precedents, and Reports

- The Judiciary Act of 1869: the lawcurrently under debate, which fixed the Court at nine Justices.
- The Judicial Procedures Reform Bill of 1937: Roosevelt's failed proposal to expand the Court to as many as fifteen Justices; rejected 70–20 in the Senate.
- Senate Judiciary Committee Report, June 14, 1937: the Committee's formal condemnation of the 1937 plan, still quoted in modern debates over Court reform.
- Presidential Commission on the Supreme Court of the United States (2021): a bipartisan commission convened under President Biden to study reform options; it declined to recommend a specific course of action.

9. Previous Attempts to Solve the Problem

The Judicial Procedures Reform Bill of 1937

The only serious historical attempt to expandthe Supreme Court remains Roosevelt's 1937 plan. Frustrated that the Court had repeatedly struck down New Deal legislation as unconstitutional, Roosevelt proposed allowing the President to appoint one additional Justice for every sitting Justice over the age of seventy, up to a maximum of six new seats, potentially expanding the Court from nine to fifteen (Grassley/Senate Judiciary Committee). He justified this publicly by claiming the Court was overwhelmed with cases, a claim Chief Justice Charles Evan Hughes directly refuted before Congress (Fox News).

The plan collapsed under bipartisan opposition. The Senate Judiciary Committee's report on the bill remains one of the most quoted documents in this entire debate, warning that the plan would make government "one of men rather than one of law" (Judiciary.senate.gov). The Senate ultimately

despite rejected the bill 70–20, including opposition from Roosevelt's own Vice President, Democrats holding a commanding 76–16 majority at the time(Fox News).

The 2021 Presidential Commission on the Supreme Court

The most recent formal attempt to revisit this question camein 2021, when President Biden created a bipartisan commission of legal scholars to study possible reforms, including expansion, term limits, and changes to the Court's docket. The commission ultimately declined to recommend a specific course of action, instructive for delegates, since even experts given significant time and resources could not reach consensus.

10. Objectives

- Determine whether the Judiciary Act of 1869 should be amended, and if so, by how many seats.
- Establish a clear, durable procedure for how (and how easily) the Court's size can be changed in the future.
- Addressing the underlying legitimacy concerns driving this debate without relying solely on changing the Court's size.

11. Guiding Questions

- Does your senator's public record support, oppose, or leave ambiguous their position on Court expansion?
- What does the 1937 precedent suggest about the political risks of pursuing expansion, regardless of which party proposes it?
- Is there a structural reform (such as term limits) that addresses the same underlying concerns without changing the Court's size?
- What vote threshold should be required for a change this consequential, and why?

12. Possible Solutions

Fixed Expansion With Staggered Implementation

Rather than adding seats all at once, the Senatecould consider a fixed increase implemented gradually across multiple presidentialterms, so thatno single administration fills every new seat.

Term Limits Instead of Expansion

An alternative reform path avoids changing the number of seats altogether, instead proposing fixed (x)-year terms for Justices, with vacancies arising predictably on a rotating basis rather than by chance of retirement or death.

A Formal Threshold for Future Changes

Given the 1937 precedent, the Senate couldconsider requiring any future change to the Court's size to pass by a supermajority (e.g., two-thirds)rather than a simple majority.

Maintaining the Status Quo

Delegates should also seriously consider taking no action at all. A resolution affirming the current nine-seat structure remains a legitimate and historically well-supported outcome, given that every serious attempt to change the number since 1869 has ultimately failed.

13. Appendix

This section ishere to point you toward a few sources that go deeper than this guide has room for, pick whicheverfits the angle you want to research further.

history.com/news/franklin-roosevelt-tried-packing-supreme-court

Source A: A very readable overview of the 1937 plan and whyitbackfired, a good starting point if you're new to this topic.

judiciary.senate.gov (Senate Judiciary Committee 1937 report, referenced in the Grassley op-ed)

Source B: The real Senate Judiciary Committee's own 1937 condemnation of the plan, useful ifyou want to quote an actual institutional voice from the period.

en.wikipedia.org/wiki/Judicial_Procedures_Reform_Bill_of_1937

Source C: The fullest single-page timeline of the whole episode,including the vote count and key political players.

14. Bibliography

"1937 February5: FDR Proposes Disastrous Court-Packing Plan." *Today in Clark History*, todayinclh.com/?p=700. Accessed 21 Sept. 2026.

"Article III: Judicial Branch." *Constitution Annotated*, Library of Congress, constitution.congress.gov/browse/article-3/. Accessed 8 Oct.

Baker v. Carr. *U.S. Reports*, vol. 369, 1962, p. 186. *Justia U.S. Supreme Court Center*, supreme.justia.com/cases/federal/us/369/186/. Accessed 8 Oct.

Byrne, Kerry J. “On This Day in History, July 22, 1937, FDR's Effort to Pack Supreme Court Fails in the Senate.” *Fox News*, foxnews.com/lifestyle/day-history-fdr-effort-pack-supreme-court-failed. Accessed 21 Sept. 2026.

“ICYMI: Grassley Op-Ed: Democrats Revive FDR Court-Packing Scheme to Rig the Supreme Court.” *U.S. Senate Committee on the Judiciary*, judiciary.senate.gov. Accessed 21 Sept. 2026.

Kennedy, Lesley. “When FDR Tried to Pack the Supreme Court.” *History.com*, A&E Television Networks, 2022, history.com/news/franklin-roosevelt-tried-packing-supreme-court. Accessed 21 Sept. 2026.

Reynolds v. Sims. *U.S. Reports*, vol. 377, 1964, p. 533. *Justia U.S. Supreme Court Center*, supreme.justia.com/cases/federal/us/377/533/. Accessed 8 Oct.

Rucho v. Common Cause. *Oyez*, www.oyez.org/cases/2018/18-422. Accessed 8 Oct.

United States, Congress. “An Act to Enforce the Right of Citizens of the United States to Vote in the Several States of This Union, and for Other Purposes” (Enforcement Act of 1870). *United States Statutes at Large*, vol. 16, 1870, pp. 44–146. *GovInfo*, www.govinfo.gov/content/pkg/STATUTE-16/pdf/STATUTE-16-Pg44-4.pdf. Accessed 8 Oct.

United States, Congress. “Voting Rights Act (1965).” *National Archives*, 15 Dec. 2021, www.archives.gov/milestone-documents/voting-rights-act. Accessed 8 Oct.

Wikipedia contributors. “Judicial Procedures Reform Bill of 1937.” *Wikipedia, The Free Encyclopedia*, en.wikipedia.org/wiki/Judicial_Procedures_Reform_Bill_of_1937. Accessed 21 Sept. 2026.

15. Further Reading

Presidential Commission on the Supreme Court of the United States, Final Report (2021): a longer, more technical review of every reform option considered, including expansion, term limits, and jurisdiction changes.

- Link: https://purl.fdlp.gov/GPO/gpo173589

Congressional Research Service, "Court Packing: Legislative Control over the Size of the Supreme Court" (2020): a nonpartisan, legally precise summary of Congress's power to change the Court's size.

- Link: https://www.everycrsreport.com/files/2020-12-14_LSB10562_29ff9f27d1874bea99cae30eee535af7ed165e96.pdf